

TENTATIVE RULINGS for LAW and MOTION

September 24, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Thirteen	(530) 406-6777
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Barreras v. Jessee Heating & Air Conditioning**
Case No. CV2024-2137

Hearing Date: September 24, 2026 Department Fourteen 9:00 a.m.

Motion for assignment order:

Plaintiff Raymond Barreras' ("plaintiff") motion for assignment order is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 708.510, 708.520.) The Court finds that plaintiff's request for assignment rights to payment due or to become due to defendant Jessee Heating & Air Conditioning's ("defendant") accounts receivable is overly broad based on the circumstances presented. (Code Civ. Proc., § 708.510, subds. (a), (c), (d); Rodriguez Decl., ¶¶ 6-8; Gray Decl., ¶¶ 4-14.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to compel compliance with settlement agreement and judgment:

Plaintiff's motion to compel compliance with settlement agreement and judgment is **DENIED**. The Court finds that plaintiff fails to provide sufficient legal authority or argument in support of this motion. (Cal. Rules of Court, rule 3.1113(b); see *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73–74, citing *Sprague v. Equifax, Inc.* (1985) 166 Cal.App.3d 1012, 1050 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **In re Kary**
Case No. PR2026-0111
Hearing Date: **September 24, 2026** **Department Thirteen** **9:00 a.m.**

Petitioner Monika Frey's unopposed motion for entry of amended order determining succession of personal residence is **GRANTED**. (Code Civ. Proc., § 473.) Pursuant to Code of Civil Procedure section 473(d), the Court finds a sufficient basis to correct petitioner's clerical error. (See Motion, pp. 1-2.)

Petitioner is **DIRECTED** to submit an amended order determining succession to primary residence (Judicial Council form DE-315) by **October 2, 2026**, for the Court's review and execution.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately.

TENTATIVE RULING

Case: **Fu v. Golden Mountain International LLC**
 Case No. CV2026-1347

Hearing Date: **September 24, 2026** **Department Thirteen** **9:00 a.m.**

Defendants Chaoju Yuan and Tianhao Liu’s demurrer to plaintiff Tianyuan Fu’s complaint and motion to strike portions of plaintiff’s complaint are **DROPPED FROM CALENDAR AS MOOT**. (Code Civ. Proc., §§ 430.10, subds. (e) & (f), 436, 437.) Plaintiff filed an amended complaint on September 10, 2026. (Code Civ. Proc., § 472; see also *People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506.)

TENTATIVE RULING

Case: **Quintero v. Quintero**
 Case No. CV2025-1576

Hearing Date: **September 24, 2026** **Department Fourteen** **9:00 a.m.**

On the Court’s own motion, plaintiff Salvador Quintero’s unopposed motion to order a partition by sale and appoint broker pursuant to Partition of Real Property Act is **CONTINUED** to **November 30, 2026**, at 9:00 a.m. in Department Fourteen. The Court will send notice to defendant Jamie C. Quintero, trustee of the Jaime C. Quintero Family Trust, a revocable living trust established September 7, 2022, regarding the new hearing date. Further, pursuant to Code of Civil Procedure section 874.317(a), defendant is informed that “any cotenant except a cotenant that requested partition by sale may buy all the interests of the cotenants that requested partition by sale.” (See also Code Civ. Proc., § 874.317, subd. (b).)